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CRWP-6129-2026**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH****(206)****CRWP-6129-2026**

Date of Decision:- 03.06.2026

PUNEET MALHOTRA

.....Petitioner

Versus

STATE OF PUNJAB AND OTHERS

.....Respondents

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Mr. Vivek Gupta, Advocate for the petitioner.

Mr. Japjot Singh AAG, Punjab.

ALOK JAIN, J. (Oral)

1. The present petition has been filed under Articles 226/227 of the Constitution of India seeking issuance of a writ in the nature of habeas corpus, directing respondents No.2 to 4 to produce the detenue-minor daughter of the petitioner, who is alleged to be in the illegal detention and custody of respondents No.5 to 8.

2. Learned State counsel has filed a reply by way of affidavit of Mr. Sanjeev Singla, Deputy Superintendent of Police, City-I, Patiala, on behalf of respondents No.1 to 4, which is taken on record.

3. As per the reply, the detenue has been recovered and custody was handed over to the petitioner on 28.05.2026. However, learned counsel for the petitioner submits that serious allegations have been levelled against



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the Investigating Officer, as recorded in the statement of the detainee under Section 164 Cr.P.C., but no action is being taken by the authorities.

4. Keeping the aforesaid issue open, the present petition is disposed of with liberty to the petitioner to raise the same before the learned trial Court in accordance with law, as the detainee has already been recovered.

5. However, as a word of caution, the authorities are directed to diligently proceed in the matter and to examine the role, acts and conduct of the detainee herself, who admittedly travelled with respondent No.5 to various places and, *prima facie*, did not raise any alarm or seek any assistance at any point of time, including any medical assistance, despite the occurrence of whatever alleged by the detainee subsequently. *Prima facie*, the matter appears to be one arising out of adolescent affection and infatuation, as respondent No.5 is also stated to be a young boy.

Needless to mention that this court has not expressed any opinion on the merits of the case, and all the issues shall be examined by the competent Court during the course of proceedings in accordance with law, at an appropriate stage.

(ALOK JAIN)
JUDGE

June 03, 2026

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Whether speaking/reasoned:-

Yes/No

Whether Reportable:-

Yes/No